

The Merchant Shipping (Shipping Office Forms) Rules, 1963

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Union of India - Act

The Merchant Shipping (Shipping Office Forms) Rules, 1963

UNION OF INDIA

India

The Merchant Shipping (Shipping Office Forms) Rules, 1963

Rule THE-MERCHANT-SHIPPING-SHIPPING-OFFICE-FORMS-RULES-1963 of 1963

Published on 4 March 1963

Commenced on 4 March 1963

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The Merchant Shipping (Shipping Office Forms) Rules, 1963

Published vide Notification Gazatte of India, 1963, Part 2, Section 3(i), Page 437.

1795.

[4th March, 1963.]

In exercises of the powers conferred by section Merchant Shipping Act, 1958 (

44 of 1958

) and in super session of all previous rules and orders on the subject, the Central Government hereby makes the following rule namely :-

1.

Short Title and Commencement.

(1)

These rules may be called the Merchant Shipping (Shipping Office Forms) Rules, 1963.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules ---

(a)

"Act" means the Merchant Shipping Act, 1958;

(b)

"Form" means a form set out in the schedule to these rules.

3.

Change in Crew.

- The statement of changes in the crew of a ship referred to in section 105 of the Act shall be in Form I.

4.

Inward and outward clearances.

- The certificates mentioned in sub-sections (1) and (4) of sections 106 of the Act shall be in Forms II and III respectively.

5.

Register of Young Persons.

- The register of young persons referred to in section 112 of the Act to be kept by the master in the case of every Indian ship and every other ship which engages young persons in India, where there is no agreement with the crew, shall be in form IV.

6.

Wages and Property of Seamen left behind.

- whenever a seaman or apprentice is left behind, the form of the statement of the amount due to the seaman or apprentice, the property left on board and the expenses incurred by the master or owner as a result of the absence incurred by the master or owner as a result of the absence of such seamen or apprentice referred to in sub-section (2) of Section 122 of the Act and the form of the receipt of the Shipping Master referred to in sub-section (3) thereof shall be as sent out in Forms V and VI.

7.

Account of Wages.

- The account of wages of seamen and of the deductions to be made there from to be delivered under section 125 of the Act shall be in Form VIII.

8.

Release.

- The release referred to in sub-section (1) of section 130 of the Act shall be in Form VIII.

9.

Allotment Note.

- The form of the allotment note referred to in section 136 of the Act shall be in Form IX.

10.

Wage and Property of Deceased Seamen.

- The statement of the property of a deceased seaman or apprentice to be given to a consular officer or shipping master in accordance with section 153 of the Act shall be in Form X.

11.

Official Log Book.

- The official log book which shall be kept by every Indian ship except a home-trade ship of less than two hundred tons gross shall be in Form IX.

Schedule

Eng. 2

Form No. I

Master are requested to

fill up the form and return it without delay to the Shipping

Master at any port where changes have taken place in their crews.

Account of Change Made in the Crew of a Foreign-Going Ship or A Home-Trade Ship of two Hundred Tons Gross or More

[See rule 3 of the Merchant Shipping (Shipping office forms) Rules 1963]

Name

of Ship

Official

Number

Port

of Registry

Name

and Address of Master and No. of his Certificate.

Shipping

office at which Agreement was first opened and the date

Description

of Voyage of Employment

Date

Place

I hereby declare to the truth of the entries in this account of changes in the crew which is this day of 19...

Forwarded to the Shipping Master at

Signature of Master

Notice

The continuous Discharge Certificates of men who have left the ship no to be forwarded to the Shipping Master with this form.

No entries or marks of any kind are to be made in the certificates.

Part I ? Seamen who have failed to join, deserted or otherwise left the ship.

Name in full

Date and place of

signing Agreement Date

Place

Capacity in the

case of Mate, or Engineer, also the No. of Certificate

No. of Continuous

Certificate of discharge and Registration Number

1

2

3

4

5

Particulars of

leaving the ship Report of character

If the Continuous

Discharge Certificate is not forwarded with this form, state the reason

Date

Place

Cause

Ability

Conduct

6

7

8

9

10

11

PART

II ?Deaths of

members of the crew

Date and Place of

Death

Name in full

Sex

Age

Rating

12

13

14

15

16

17

Nationality

(stating birth place)

Last place of

Abode

Cause of Death*

18

19

20

PART

III?Substitutes engaged

Name in full Age

Nationality (if a

citizen of India state birth place)

ADDRESSES

(1) Name and

relationship of next-of-kin

(2) Home address

(3) Address of

Next-of-kin.

Ship in which he

last served and year of discharge therefrom

Year

Name and Official

No. and port to which he belonged

21

22

23

24

25

26

(1)

(2)

(3)

(1)

(2)

(3)

Date and place of
signing agreement

In What capacity

engaged No. of certificate (if any) and C.D.C. and Reg. No.

Amonut of wages

per calender month

Advances

Amount of monthly

allotment

(i) Name of

Allotee

(ii) Relationship

(iii) Postal

address

Date

Place

27

28

29

30

31

32

1. If the cause of death is from disease, the name or nature of the same should be stated.

2. When the cause of death is accidental the circumstances attending the accident should full stated.

3. If at the time of an accidental death the ship sustained any damage, loss of gears, cargo etc., the nature of such damage or loss should be stated; if no damage or loss was sustained, it should be so stated.

4. When the death is occasioned by any other cause, e.g., suicide, murder, etc. full particulars of the same should be stated, and copy of log entries attached. If a citizen of India, state place of birth, and if born in a foreign country, state whether a natural born citizen of India or naturalized. The capacities of Engineers not employed on the Propelling Engineers and Boilers should be described here and in the certificate of discharge as Engine Drivers, Donkey men, Refrigerating Engineers, Electrical Engineers or Winchmen, and not merely as Engineers; boys entirely employed in connection with the work of Cooks and Stewards should be described as Cabin Boys, not merely as boys.

Merchant Shipping Act, 1958 (44 OF 1958)

Changes in crew to be reported

Section 105. - The master of every foreign-going Indian Ship and of every home-trade Indian ship of two hundred tons gross or more, the crew of which has been engaged before a shipping master, shall before finally leaving the port where the engagement took place, sign and send to the nearest shipping master a full and accurate statement in the prescribed form, of every change which has taken place in his crew, and that statement shall be admissible in evidence.

Note. - If a master fails without reasonable cause to comply with the requirements of Section 105, he shall be liable to a fine which may extend to fifty rupees - vide Section 436(2) of the Merchant Shipping Act, 1958.

FORM

NO. II

FORM

No. II

No.....

No.....

FOREIGN-GOING

OR HOME-TRADE SHIP OF TWO HUNDRED TONS GROSS OR MORE

FOREIGN-GOING

OR HOME-TRADE SHIP OF TWO HUNDRED TONS GROSS OR MORE

[See

rule 4 of the Merchant Shipping (Shipping Office Forms) Rules,

1963]

Certificate

for Clearing Outwards

[See

rule 4 of the Merchant Shipping (Shipping Office Forms) Rules,

1963.]

Name of

Master.....

Name of Master

Name of Ship

Official Number

Port of Registry

Regd. Tonnage

Name of

Ship.....

Name of

Owner/Agents.....

Official

Number.....

Port of Registry

?.....

Gross

Tonnage.....

Net

Description of

Voyage-----

Next port of

call.....

I Certify that the

Master of this ship has complied with the provisions of the

Merchant Shipping Act, 1958.

Date.....

Dated

at.....

?.....day

of ?.....19...

?.....

Shipping

Master

?.....

Shipping

Master.

FORM

NO. III

FORM

No. III

No.....

No.....

FOREIGN-GOING

OR HOME-TRADE SHIP OF TWO HUNDRED TONS GROSS OR MORE

FOREIGN-GOING

OR HOME-TRADE SHIP OF TWO HUNDRED TONS GROSS OR MORE

[See

rule 4 of the Merchant Shipping (Shipping Office Forms) Rules,
1963]

Certificate

for Clearing Outwards

[See

rule 4 of the Merchant Shipping (Shipping Office Forms) Rules,
1963.]

Name of

Master.....

Name of Master

Name of Ship

Official Number

Port of Registry

Regd. Tonnage

Name of

Ship.....

Port

of Discharge

Whence

arrived

Name of

Owner/Agents.....

Official

Number.....

Port of Registry

?.....

Gross

Tonnage.....

Net

Description of

Voyage-----

Next port of

call.....

I Certify that the

above-named Master has this day deposited with me his Agreement,

Official Log Book, also a list of his crew, and all other

documents required in accordance with the provisions of the

Merchant Shipping Act, 1958 (

44 of 1958

).

Date.....

Dated

at.....

?.....day

of ?.....19...

?.....

Shipping

Master

?.....

Shipping

Master.

FORM NO. IV

Register of Young Persons

(See rule of the Merchant Shipping (Shipping Office Forms) Rules, 1963)

List of young persons under eighteen years of age employed as members of the crew of on a voyage from to

Serial No.

Name in full

Date of Birth

Nationality

stating birth-place

Capacity

Date of Joining

Date of discharge

Signed by

Master,

on the

day of

19.

Note. - Under the Merchant Shipping Act, 1958, every Master of an Indian Ship and every master of any other ship which engages young persons in India is required (under a penalty of Rs. 200/- for failure) to keep, if there is no agreement with the crew, a register of young persons with particulars of the dates of their birth and of the dates on which they became or ceased to be members of the crew.

Form V

Port of

Account of wages and effects of a deserting seaman or a seaman Left behind

[See rule 6 of the Merchant Shipping (Shipping office form Rules, 1963]

Name of Ship

Official Number

Port of

Registry

Name of Master

Description of

Voyage or employment

Name of Seaman

C.D.C./Registration No. and capacity

Reference No. in

Agreement

Date of Port of

Engagement

Time of Desertion

or leaving behind

Place of Desertion

or leaving behind

Birth-place &
Nationality
Age
Married or single
If married name
and Residence of wife
If any children
their names and age
Name and residence
of Father and Mother or of the nearest known Relation
*

If the Seaman's name is not on the articles, in the space must be entered the date of his being sent on board the ship; and in such case, here state by whom and where he was sent on board, and any other particulars.

DEDUCTIONS

:

Wages, Money,
Cloths and other effects
Amount
Notice to master :
For all deductions
made reasons must be given to the satisfaction of the Shipping Master;
and when possible,
they should be proved by receipts or entries the Official Log Book.

Initials of
Shipping Master against each item checked.

Particulars of
deductions

Amount

Wages at

Rs.

Per

Months Days

For

Money in

possession of the Seaman

Total

Deductions as per

Account

Net Amount

?..... Total

?.....

I HEREBY declare that the above is a true and correct account of the Money, Wages and Effects of the above named seaman and that a full inventory of his effects delivered to the Shipping Master is entered on the reverse of this form.

Dated this Day of 19.....

Signature of the Master of the ship

I HEREBY certify that I have examined the above account, and compared the Inventory with the official Log Books, which is attested by the Master (and/or) one of the Crew and that the above is a true copy thereof. The balance of the

account has been said and the articles have been delivered to me.

This Day of 19

Shipping Master

Inventory of Effects belonging to Delivered to

The above mentioned Articles are contained in [*]

[Here state the number and description of packages.]

Master

S.S./M.V.

Note. - valuables and foreign currency should be kept in a separate cover and handed over to the Shipping Master by the Ship Master personally.

Form No. VI

No.....

Receipt for wages, effects, etc.

Port of

[See rule 6 of the Merchant Shipping (Shipping Office Forms) Rules, 1963]

Name

of Ship and Official No.

Name

of Master/Agents

RECEIVED the sum of Rupees np. in respect Of the under mentioned seaman :-

Seaman's Name. CDC

and Registration No. and other details of credit

Rating

Amount

Where left or

discharge

Particulars of

effects (if any) delivered to the Shipping Master

1

2

3

4

Total

Shipping Office

Port of 19

Shipping Master.

[Form VII

[Substituted by G.S.R. 1005, dated 24th June, 1976.]

(See rule 7)

Statement of Seamen's Accountant of Wages, Etc.

(Provisional)

From : Commencement of Voyage OR from 1st April.....

Until : Termination of Voyage OR until 31st March

Ship's name and

Official Number

Name of Seaman and

Category

Date and Place of

commencement of wages

Date and Place of

termination of wages

Full Particulars

of on Board promotions/demotions

(Voyage

Description)

Foreign-going

Coastal Trade

Home-Trade

Master's name

Ref. No. in A/-

Agreement

C.D.C. No.

Total period for

which wages are payable

Months.....

Days.....

Monthly Rate of

Wages Rs.

Hospitalisation

Period abroad (if any)

Months.....

Days.....

Income Tax Ref.

No. (if any)

EARNINGS (A)

DEDUCTIONS

1. Wages :

(a) @

Rs.....for.....months.....days.....Rs.

1. Joining

Advance.....Rs.

(b) @

Rs.....for.....months.....days.....Rs.

2. Cash advances

during the voyage.....Rs.

(c) @

Rs.....for.....months.....days.....Rs.

3. Monthly

Allotments of ?..... Rs.

Rs.....for.....

months with effect

from.....

(d) @

Rs.....for.....months.....days.....Rs.

4. Special

Remittances (listed overleaf)

2. Leave Pay :

5. Value of

Supplies during the voyage ?.....Rs.

(a) @

Rs.....for.....months.....days.....Rs.

6. Fines and

forfeitures ?.....Rs.

(b) @

Rs.....for.....months.....days.....Rs.

7. Excess baggage

charges ?.....Rs.

(c) @

Rs.....for.....months.....days.....Rs.

8. S & D Fees

?.....Rs.

(d) @

Rs.....for.....months.....days.....Rs.

9. P.F.

Contribution in respect of wages as at 3 ?.....Rs.

3. Total Wages for

Provident Fund Contribution

*10. Income Tax

?.....Rs.

4. Subsistence

Allowance :

11. Any other

deductions ?.....Rs.

(a)

.....for.....months.....days.....Rs.

Total Deductions

?.....Rs.

(b)

.....for.....months.....days.....Rs.

ASSESSMENT OF

INCOME TAX FOR THE PERIOD

5. Bonus :

(C) :

?.....

(a)

.....for.....months.....days.....Rs.

Total Gross

Earnings Rs..... (i) P.P.

(b)

.....for.....months.....days.....Rs.

Contribution

Rs.....

(c)

.....for.....months.....days.....Rs.

Less : Total of

Income Tax

(ii)

Previous Allowance for I.T. relief (if any)

Rs.....

(d)

.....for.....months.....days.....Rs.

Relief Gross

Earnings for Income Tax.

Rs.....

6. Supplements

(including O.A.D.S.) :

(iii)

Life Insurance.

(a)

.....for.....months.....days.....Rs.

Premium

for the year..... Rs.

(b)

.....for.....months.....days.....Rs.

(iv)

Other item attracting Income Tax Relief Rs.....

(c)

.....for.....months.....days.....Rs.

Total

Rs.....

(d)

.....for.....months.....days.....Rs.

7. Overtime or

Payment in Lieu of overtime :

(a)

?.....hrs/days @

Rs.....Per

hr/month..... Rs.

(b)

?.....hrs/days @

Rs.....Per

hr/month..... Rs.

(c)

?.....hrs/days @

Rs.....Per

hr/month..... Rs.

(d)

?.....hrs/days @

Rs.....Per

hr/month..... Rs.

8. Payment For

Work on National Holiday.

?.....

Rs.

9. Other Earnings

: (a) ?.....

(b)

?.....

?.....

Rs.

10. Total of Gross

Taxable Earning

?.....

Rs.

Add : Balance

brought forward from previous Account ended 31-3-

11. Total of Gross

Wages for Voyage

12. Loss

Deductions As per Contra

?.....

Rs.

13. Balance Due to

Seaman

?.....

Rs.

Record of previous earnings during the same financial year ended 31st March.....

Ship's name

Category

Date of

commencement of wages

Date of

termination of Wages

Total gross

earnings

Total of Income

Tax Relief

Total of previous

taxable income (D)

Income tax

deducted (E)

(C) Gross

earnings for Income Tax during the financial year ended 31st March..... Rs.

(D)

Previous Taxable

earning in the same financial year

?.....

Rs.

Aggregate taxable

earnings during financial year

19...../19.....

?.....

Rs.

Aggregate total

earnings during financial year

19...../19.....

?.....

Rs.

Income Tax

payable

?.....

Rs.

(E)

Income Tax

already deducted Balance of Income Tax payable

?.....

Rs.

Date at the Port

of

?.....

This

?..... day of

?.....19.....

?.....

SIGNATURE

OF THE MASTER

Each seaman is

required to retain this statement of account and produce it,
with Life Insurance premium receipt (s), if any, at his next
engagement, in his own interest.]

Form NO. VIII

To be returned to the Shipping Master witnessing the discharge of the seaman

(See rule 8 of the Merchant Shipping (Shipping Office Forms) Rules 1963)

Release on Termination of Service With Note of Excepted Claims (IF ANY)

Port

Name of ship and

port of registry

Name of Master

Name of Owner and

Local Agent

Description of

Articles

Official Number

Date of Place of

Opening Agreement

Date of

Termination of Voyage

Place of

Termination of Voyage

Cause of discharge

I/We the undersigned member/members of the crew of the above named ship, do hereby release the said ship and the master and owner or owners thereof, from all claims for wages or otherwise, in respect of the above-named voyage except as regards the claims or demands which are specified on the back hereof and identified by my signature.

the signatures of respective seamen notifying such excepted claims or demands.

And I, the master, do hereby release the said undersigned Member/members of the Crew from all claims in respect of the said voyage.

Date the day of 19....

Master.

Referenc No. in

Agreement

Number of Seaman

with CDC/Regn. Certificate No.

Signature of

Seaman

Nationality if

Indian, State birth-place

Balance of wages

paid

Character Report

Ability Conduct

I attest the execution of the above case in my presence subject to the exception above referred to (if any).

(signed)

Signature of official before when release was signed with official seal.

Note of specified claims or demands excepted from and entered by the respective seamen whose signature appear below, upon signing the release on the preceding pages hereof.

Reference No. in

Agreement

Name of Seaman

Signatures of

Seaman

Claims or Demands

referred to above

Signature of

Official Witnessing release

Form NO. IX

Seaman's Allotment Note

[See rule 9 of the Merchant Shipping (Shipping Office Forms) Rules, 1963]

A.

ship in which Seaman is engaged

B.

Name etc. of Seaman by whom Allotment is made

Name, Port of

Registry and Official No. of Ship

Full Name of

Seaman C.D.C. and Registration No.

Rating

C. Relation in

whose favour or purpose for which this Allotment Note is given.

Name and address

of Relation

Degree of

Relationship

Purpose

To

whom payable

D. Amount and

Particulars of Allotment

Amount

in Rs.

If

Allotment is to be remitted by M.O. state particulars here

Date

when first Payment is to be made

Figures.....

Words.....

The Seaman named in division B above, having entered into an Agreement to serve in the ship named in division A

above, and having required that a stipulation be inserted in the Agreement for the allotment of note, and such stipulation having been inserted pursuant to section 136 of the Merchant Shipping Act, 1958, I, the undersigned, being the Master of the said ship, give this Allotment Note for the amount named in division D above in favour of the relative/purpose named in division C above.

Payable by

Master

Seaman

Witness

Shipping Master

Form NO. X

Port OF

Account of wages and effects of a Deceased Seamen

Issued by the Govt. of India

(See Rule 10 of the Merchant Shipping (Shipping Office Forms) Rules, 1963)

Name of Ship

Official Number

Port of Registry

Name of Master

Description of

voyage or Employment

Name of Seaman

and C.D.C./Registration No. and Capacity

Reference No. in

Agreement

Date and Port of

Engagement

Time of Death

Place of Death

Cause of Death

Birth place and

Nationality

Age

If any will has

been made, Name and address of Executor

Married or Single

If married, name

and Residence of Wife

If any children

their names and ages

Name and

residence of father and Mother or of the nearest known Relation.

DEDUCTIONS

Wages, Money,

Clothes and Other Effects

Amount

Notice to Masters

:

For all

deductions made reasons must be given to the satisfaction of the Shipping Master; and when possible, they should be proved by receipts or entries in the Official Log Book.

Particulars of
Deductions
Amount
Initials of
shipping Master against each item checked.
Wages at
Rs.
Per
For
Months Days
Money in
possession of the Seaman
Total
Deductions as per
Account
Net Account
Total

I HEREBY declare that the above is a true and correct money, wages and effects of the above-named Seaman and that a full inventory of his effects delivered to the Shipping Master is entered on the reverse of this form.

Dated this day of 19

Signature of the Master of the ship.

I HEREBY certify that I have examined the above Account, and compared the Inventory with the Official Log Book, which is attested by the Mate and one of the Crew and that the above is a true copy thereof. The balance of the account has been paid and the articles have been delivered to me.

This day of 19

Shipping Master

Inventory of Effects belonging to delivered to.

The above mentioned articles are contained in [*]

[Here state the number and description of packages.]

Master,

S.S./M.V.

Note. - Valuable and foreign currency should be kept in a separate cover and handed over to the Shipping Master by the Ship-Master personally.

FORM NO. XI

Issued by the Govt. of India

Official Log Book

for either

A Foreign-going or a Home-trading Ship of 200 Tons Gross and Above

[See rule 11 of the Merchant Shipping (Shipping Office Forms) Rules, 1963.]

Name of Ship

Official No.

Port of Registry

Registered Tonnage

Gross Net

Name of Master

No. of his

Certificate

Port at which and

date when voyage commenced

Nature of the

voyage of employment

Port at which and
date when voyage terminated

Port.....

Date.....

Delivered to the Shipping Master at the

Port of on day of19.....

Countersigned

.....Shipping Master

.....Master

.....Address

Important Note :- Directorate as to keeping official logs and extracts from the Merchant Shipping Act, 1958 are printed at the beginning and at the end of this book and also at the top and/or bottom of each page where applicable.

DIRECTIONS AS TO KEEPING OFFICIAL LOGS

The importance of keeping this book properly, and duly making all the entries at the proper time, and with the strictest regard to form, cannot be too strongly impressed on shipmasters. By neglecting to do so shipmasters render themselves liable to heavy penalties, and their owners to serious loss whilst members of their crew will suffer inconvenience from not being able to obtain records of their services. The absence of proper entries will also prevent fines or forfeitures from being enforced and will tend to prevent the maintenance of discipline.

Care must be taken whenever there is a change of master to see that documents handed over are up-to-date.

Entries must be made in order of date, and no blanks should be left.

If any entry in the Official Log relates in any way to a member of the crew the page number is to be entered against the man's name in the Official Log and Index.

Note. - it is very desirable that the following entries should be made in the Official Log Book :-

1. Every case in which the allowance of provisions is reduced, together with the quantity, or quantities, of the article, or articles so reduced.
2. Every case in which a member of the crew is promoted to a higher grade of service with the date of such promotion, the grade and the rate of wages which the seaman is to receive.
3. in cases of illness, frequent entries (daily if possible) showing the progress and treatment of patient.
4. Every case of drunkenness or misconduct on the part of any certificated Mate or Engineer, whether the Master wishes the case to be investigated or not.
5. Every important accident or damage to ship or cargo.

The following are the Chief statutory provisions relating to Official Logs :-

MERCHANT SHIPPING ACT, 1958

Official logs to be kept to be dated.

212.

(1)

. An official log shall be kept in the prescribed form in every Indian ship except a home-trade ship of less than two hundred tons gross.

(2)

The official log may, at the discretion of the master or owner, be kept distinct from or united with the ordinary ship's log so that in all cases the spaces in the official log book be duly filled up.

Entries in official log books how and when to be made

213.

(1)

An entry required by this Act in the official log book shall be made as soon as possible after the occurrence to which it relates, and, if not made on the same day as that occurrence, shall be made and dated so as to show the date of the occurrence and of the entry respecting it and if made in respect of an occurrence happening before the arrival of the ship at her final port of discharge, shall not be made more than twenty-four hours after that arrival.

(2)

Save as otherwise provided in this Act, every entry in the official log book shall be signed by the master and by the mate or some other member of the crew and also--

(a)

if it is an entry of injury or death, shall be signed by the medical officer on board, if any, and

(b)

if it is an entry of wages due to or the property of a seaman or apprentice who dies, shall be signed by the mate and by some member of the crew besides the master.

(3)

Every entry made in an official log book in the manner provided by this Act shall be admissible in evidence.

Entries required to be made in official log books.

214.

(1)

The master of a ship for which an official log is required shall enter or cause to be entered in the official log book the following matters, namely :-

(a)

every conviction by a legal tribunal of a member of his crew and the punishment inflicted;

(b)

every offence committed by a member of his crew for which it is intended to prosecute or to enforce a forfeiture or exact a fine, together with such a statement concerning the reading over of that entry and concerning the reply (if any) made to the charge as is by this Act required;

(c)

every offences for which punishment is inflicted on board and the punishment inflicted;

(d)

a report on the quality of work of each member of his crew; or a statement that the master declines to give an opinion thereon with a statement of his reasons for so declining.

(e)

Every case of illness, hurt or injury happening to a member of his crew with the nature thereof and the medical treatment adopted (if any);

(f)

Every case of death happening on board and the cause thereof, together with such particulars as may be prescribed;

(g)

Every birth happening on board, with the sex of the infant, the names of the parents and such other particulars as may be prescribed;

(h)

Every marriage taking place on board with the names and ages of the parties;

(i)

The name of every seaman or apprentice who ceases to be a member of the crew otherwise than by death, with the place, time, manner and cause thereof;

(j)

The wages due to any seaman or apprentice who dies during the voyage and the gross amount of all deductions to be made therefrom;

(k)

The money or other property taken over of any seaman or apprentice who dies during the voyage;

(l)

Any other matter which is to be or may be prescribed for entry in the official log.

(2)

The master of every such ship, upon its arrival at any port in India or at such other time and place as the Central Government may with respect to any ship or class of ships direct, shall deliver or transmit, in such form as the Director General may specify, a return of the facts recorded by him in respect of the birth of a child, or the death of a person on board the ship to the Director-General.

Offences in respect of official logs

215.

(1)

An official log book shall be kept in the manner required by this Act, and an entry directed by this Act to be made therein shall be made at the time and in the manner directed by this Act.

(2)

No person shall make or procure to be made or assist in making any entry in any official log book in respect of any occurrence happening previously to the arrival of the ship at her final port of discharge more than twenty-four hours after such arrival.

Delivery of official logs to shipping masters

216.

The master of every ship for which an official log book is required to be kept under this Act shall, within forty-eight hours after the ship's arrival at her final port of destination in India or upon the discharge of the crew, whichever first happens, deliver the official log book of the voyage to the shipping masters before whom the crew is discharged.

Official logs to be sent to shipping master in case of transfer of ship or loss.

217.

(1)

If for any reason the official log ceases to be required in respect of an Indian ship, the master or owner of the ship shall, if the ship is then in India within one month, and if she is elsewhere within six months, after the cessation, deliver or transmit to the shipping master at the port to which the ship belonged the official log book duly completed up to the time of cessation.

(2)

If a ship is lost or abandoned, the master or owner thereof shall if practicable and as soon as possible, deliver or transmit to the shipping master at her port of registry the official log book, duly completed up to the time of the loss or abandonment.

Note. - (i) If the master of a ship or any person fails without reasonable cause to comply with the provisions of the above sections, he shall be liable to a fine to the extent shown below, vide Section 436(2) of the Merchant Shipping Act, 1958 :-

(a)

S. 214(2) - Fine which may extend to one-hundred rupees.

(b)

S. 215(1) - Fine which may extend to fifty rupees, if no other penalty is provided in the Act.

(c)

S. 215(2) - Fine which may extend to three-hundred rupees.

(d)

S. 216 - Fine which may extend to two-hundred rupees.

(e)

S. 217 - Fine which may extend to one-hundred rupees.

(ii)

If any person willfully destroys or mutilates or renders illegible any entry in any official log book or willfully makes or procures to be made or assists in making a false or fraudulent entry in or omissions from an official log book, he shall be liable to imprisonment which may extend to one year.

EXTRACTS FROM THE MERCHANT SHIPPING ACT, 1958 RELATING TO MASTERS AND SEAMEN

Special provisions with regard to agreement with crew of Indian ships

103.

(1)

The following provisions shall have effect with respect to every agreement made in India with the crew of an Indian ship, namely :-

(a)

the agreement shall, subject to the provisions of this Act as to substitutes, be signed by each seaman in the presence of a shipping master;

(b)

the shipping master shall cause the agreement to be read over and explained to each seaman, in a language understood by him or shall otherwise ascertain that each seaman understands the same before he signs it, and shall

attest each signature;

(c)

when the crew is first engaged, the agreement shall be signed in duplicate, and one part shall be retained by the shipping master, and the other part shall be delivered to the master and shall contain a special place or form for the descriptions and signatures of substitutes or persons engaged subsequently to the first departure of the ship;

(d)

when a substitute is engaged in the place of a seaman who has duly signed the agreement and whose services are within twenty-four hours of the ship's putting to sea lost by death, desertion or other unforeseen cause, the engagement shall, if practicable, be made before a ship puts to sea, if practicable, and if not, as soon afterwards as possible, cause the agreement to be read over and explained to the substitute; and the substitute shall thereupon sign the same in the presence of a witness, who shall attest the signature.

(2)

In the case of an agreement made in India with the crew of a foreign-going Indian ship, the following provisions shall have effect in addition to the provisions specified in sub-section (1), namely :-

(a)

the agreement may be made for a voyage of the ship or, if the voyages of the ship average less than six months in duration, may be made to extend over two or more voyages, and agreements so made are in this Act referred to as running agreements;

(b)

a running agreement may be made to extend over two or more voyages so that it shall terminate either within six months from the date on which it was executed, or on the first arrival of the ship at her port of destination in India after the expiration of that period, or on the discharge of cargo consequent upon such arrival, whichever of these dates shall be the latest :

Provide that no such running agreement shall continue in force, if, after the expiration of such period of six months as aforesaid the ship proceeds on a voyage from a port outside India to any other such port which is not on the direct route or a customary route or a customary route to her port of destination in India;

(c)

on every return to a port in India before the final termination of a running agreement, the master shall discharge or engage before the shipping master at such port any seaman whom he is required by law so to discharge or engage, and shall upon every such return endorse on the agreement a statement (as the case may be) either that no such discharges or engagements have been made or are intended to be made before the ship leaves port, or that all those made have been made as required by law;

(d)

the master shall deliver the running agreement so endorsed to the shipping master, and the shipping master shall, if the provisions of this Act relating to agreements have been complied with, sign the endorsement and return the agreement to the master.

(3)

In the case of an agreement made in India with the crew of a home-trade Indian ship of two hundred tons gross or more, the following provisions shall have effect in addition to the provisions specified in sub-section (1) namely :-

(a)

the agreement shall not be for a period longer than six months, but if the period for which the agreement was entered into expires while the ship is not in an Indian port, the agreement shall continue in force until the ship is again in an Indian port :

Provided that, except with the consent in writing of a seaman concerned, the agreement shall not continue in force for more than three months after the expiration of the period for which it was entered into;

(b)

an agreement for service in two or more ships belonging to the same owner may be made by the owner instead of by the master, and the provisions of this Act with respect to the making of the agreement shall apply accordingly.

Wages and other property of seaman or apprentice left behind

122.

(1)

If a seaman or apprentice is left behind, the master shall enter in the official log book a statement of the amount due to the seaman or apprentice in respect of wages at the time when he was left behind and of all property left on board by him, and shall take such property into his charge.

(2)

Within forty-eight hours after the arrival of the ship at the port in India at which the voyage terminates, the master shall deliver to the shipping master -

(a)

a statement of the amount due to the seaman or apprentice in respect of wages, and of all property left on board by him; and

(b)

a statement, with full particulars, of any expenses that may have been caused to the master or owner of the ship by the absence of the seaman or apprentice, where the absence is due to a contravention by the seaman or apprentice of section 191; and, if required by the shipping master to do so, shall furnish such vouchers as are reasonably required to verify the statements.

(3)

The master shall at the time when he delivers the statements referred to in sub-section (2) to the shipping master also deliver to him the amount due to the seaman or apprentice in respect of wages and the property that was left on board by him, and the shipping master shall give to the master a receipt therefore in the prescribed form.

(4)

The master shall be entitled to be reimbursed out of the wages or property referred to in clause (a) of sub-section (2) such expenses shown in the statement referred to in clause (b) of that sub-section as appear to the shipping master to be properly chargeable.

Disrating of Seamen

126.

(1)

Where the master of a ship disrates a seaman, he shall forthwith enter or cause to be entered in the official log book a statement of the disrating, and furnish the seaman with a copy of wages consequent on the disrating shall not take effect until the entry has been so made and the copy so furnished.

(2)

Any reduction of wages consequent on the disrating of seaman shall be deemed to be a deduction from wages within the meaning of sections 125 and 127.

Decision of questions by shipping masters

132.

(1)

Where under the agreement with the crew any dispute arises at any port in India between the master, owner or agent of a ship and any of the crew of ship, it shall be submitted to the shipping master; -

(a)

where the amount in dispute does not exceed three hundred rupees, at the instance of either party to the dispute;

(b)

in any other case, if both parties to the dispute agree in writing to submit the dispute to the shipping master.

(2)

The shipping master shall hear and decide the dispute so submitted and an award made by him upon the submission shall be conclusive as to the rights of the parties, and any document purporting to be such submission or award shall be prima facie evidence thereof.

(3)

An award made by a shipping master under this section may be enforced by a magistrate in the same manner as an order for the payment of wages made by such magistrate under this Act.

(4)

Nothing in the Arbitration Act, 1940, shall apply to any master submitted to a shipping master for decision under this section.

Power of shipping master to require production of ship's papers

133.

In any proceedings under this Act before a shipping master relating to the wages, claims or discharge of a seaman, the shipping master may require the owner, master or agent or any mate or other member of the crew to produce any log books, papers, or other documents in his possession or power relating to any matter in question in proceeding, any require the attendance of and examine any of those persons being then at or near the place on the matter.

Rule as to payment to seamen in foreign currency

134.

Where a seaman or apprentice has agreed with the master or a ship for payment of his wages in Indian or other currency, any payment of, or on account of, his wages, if made in any currency other than that stated in the agreement, shall, notwithstanding anything in the agreement, be made at the rate of exchange for the time being current at the place where the payment is made.

Master to take charge of the effects of deceased Seaman

152.

(1)

If any seaman or apprentice engaged on any ship, the voyage of which is to terminate in India, dies during that voyage, the master of the ship shall report the death to the next-of-kin of the seaman or apprentice and to the shipping master at his port of engagement and shall take charge of any money or effects belonging to the seaman or apprentice which are on board the ship.

(2)

The master shall thereupon enter in the official log book the following particulars, namely :-

(a)

a statement of the amount of money and detailed description of the other effects;

(b)

a statement of the sum due to the deceased for wages and of the amount of deduction, if any, to be made from the wages.

(3)

The said money balance of wages and other effects in this Act referred to as the property of the seaman or apprentice.

Master to pay and deliver property of deceased seamen

154.

(1)

If the master of ship fails to comply with the provisions of this Act with respect to taking charge of the property of a deceased seaman or apprentice, or to making in the official log book the proper entries relating thereto, or to the payment or delivery of such property, he shall be accountable for such property to the Shipping master as aforesaid, and shall pay and deliver the same accordingly.

(2)

The property may be recovered in the same court and manner in which the wages of seamen may be recovered under this Act.

Ships to have sufficient provisions and water

168.

(1)

All Indian ships and all ships upon which seamen have been engaged shall have on board sufficient provisions and water of good quality and fit for the use of the crew on the scale specified in the agreement with the crew.

(2)

If any person making an inspection under section 176 finds the provisions or water to be of bad quality and unfit for use or deficient in quantity, he shall signify it in writing to the master of the ship and may, if he thinks fit, detain the ship until the defects are remedied to his satisfaction.

(3)

The master shall not use any provisions or water so signified to be of bad quality and shall in lieu of such provisions or water, provide other proper provisions or water and he shall, if the provisions or water be signified to be deficient in quantity, procure the requisite quantity of any provisions or water to cover the deficiency.

(4)

The person making the inspection shall enter a statement of the result of the inspection in the official log book, and shall, if he is not the shipping master, send a report thereof to the shipping master and that report shall be admissible in evidence in any legal proceeding.

(5)

If the inspection was made in pursuance of a request by the members of the crew and the person making the inspection certifies in the Statement of the result of the inspection that the complaint was false and either frivolous or vexatious, every member of the crew who made the request shall be liable to forfeit to the owner out of his wages a sum not exceeding one week's wages.

(6)

The master of the ship and any other person having charge of any provisions or water liable to inspection under this section shall give the person making the inspection every reasonable facility for the purpose.

Expenses of medical attendance in case of illness

174.

(1)

If the master of an Indian ship, or a seaman or apprentice, receives any hurt or injury or suffers from any illness (not being a hurt, injury or illness due to his own willful act or default or to his own misbehaviour), resulting in his being discharged or left behind at a place other than his proper return port, the expenses of providing the necessary surgical and medical advice, attendance and treatment and medicine, and also the expenses of the maintenance of the master, seaman or apprentice until he is cured, or dies, or is brought back to the port from which he was shipped or other port agreed upon after receiving the necessary medical treatment and of his conveyance to that port, and in case of death, the expenses, if any, of his burial or cremation shall be defrayed by the owner of the ship without deduction on that account from his wages.

(2)

If the master, seaman or apprentice is on account of any illness or injury temporarily removed from his ship, a port other than his proper return port for the purpose of preventing infection, or otherwise for the convenience of the ship, and subsequently returns to his duty, the expenses of removal and providing the necessary surgical and medical advice, attendance and treatment and medicine and of his maintenance while away from the ship, shall be defrayed in like manner.

(3)

The expenses of all medicines, and surgical and medical advice, attendance and treatment, given to a master, seaman or apprentice while on board his ship, shall be defrayed in like manner.

(4)

In all other cases any reasonable expenses duly incurred by the owner for any master, seaman or apprentice in respect of illness, shall, if proved to the satisfaction of the Indian consular officer or a shipping master, be deducted from the wages of the master, seaman or apprentice.

(5)

Where any expenses referred to in this section have been paid by the master, seaman or apprentice himself, the same may be recovered as if they were wages duly earned, and, if any such expenses are paid by the Government, the amount shall be a charge upon the ship may be recovered with full costs of suit by the Central Government.

Inspection by shipping master, etc., of provisions, water, weights and measures and accommodation

176.

A shipping master, Surveyor, seamen's welfare officer, port health officer, Indian consular officer or any other officer at any port duly authorized in this behalf by the Central Government---

(a)

in the case of any ship upon which seamen have been shipped at that port, may at any time, and

(b)

in the case of any Indian ship, may at any time, and if the master or three or more of the crew so request, shall, enter on board the ship and inspect-

(i)

the provisions and water,

(ii)

the weights and measures,

(iii)

the accommodation for seamen,

with which the ship is required to be provided by or under this Act and also the space and equipment used for the storage and handling of good and water and the galley and other equipment used for the preparation and service of meals.

Inspection by master of provisions, water and accommodation at Sea

177.

The master of an Indian ship which is at sea shall, at least once in every ten days, cause an inspection to be made of the provisions and water provided for the use of the seamen and apprentices and the crew accommodation, for the purpose of ascertaining whether the same are being maintained in accordance with the requirements of this Act, and the person making the inspection shall enter a statement of the result of the inspection in a book, specially kept for the purpose.

Desertion and absence without leave

191.

(1)

No seaman lawfully engaged and no apprentice-

(a)

shall desert his ship; or

(b)

shall neglect or refuse, without reasonable cause, to join the ship or to proceed to sea in his ship or be absent without leave at any time within twenty-four hours of the ship's sailing from a port either at the commencement or during the progress of a voyage, or be absent at any time without leave and without sufficient reason from his ship or from his duty.

(2)

For the purposes of sub-section (1), the fact that the ship on which the seaman or apprentice is engaged or to which he belongs is unseaworthy shall be deemed to be a reasonable cause :

Provided that the seaman or apprentice has, before failing or refusing to join his ship or to proceed to sea in his ship or before absenting himself or being absent from the ship, as the case may be, complained to the master or a shipping master, surveyor, seaman's welfare officer, port health officer, Indian consular officer or any other officer, at any port duly authorized in this behalf by the Central Government, that the ship is unseaworthy.

General offences against discipline

194.

A seaman lawfully engaged or an apprentice shall be guilty of an offence against discipline if he commits any of the following acts, namely :-

(a)

if he quits the ship without leave after her arrival at her port of delivery and before she is placed in security'

(b)

if he is guilty of willful disobedience to any lawful command or neglect of duty;

(c)

if he is guilty of continued willful disobedience to lawful commands or continued willful neglect of duty;

(d)

if he assaults the master or any other officer of the ship;

(e)

if he combines with any of the crew to disobey lawful commands or to neglect duty or to impede the navigation of the ship or retard the progress of the voyage;

(f)

if he willfully damages his ship or commits criminal misappropriation or breach of trust in respect of, or willfully damages any of, her stores or cargo.

Smuggling of goods by seamen or apprentices

195.

(1)

If a seaman lawfully engaged or an apprentice is convicted of an offence of smuggling any goods whereby loss or damage is occasioned to the master or owner of the ship, he shall be liable to pay to that master or owner a sum sufficient to reimburse the loss or damage and the whole or a part of his wages may be retained in satisfaction on account of that liability without prejudice to any other remedy.

(2)

If a seaman lawfully engaged is convicted of an offence of smuggling opium, hemp or any other narcotic drug or narcotic, the Director-General may direct that the seaman's certificate of discharge or continuous certificate of discharge shall be cancelled or shall be suspended for such period as may be specified in the direction.

Entry of offences in official logs

196.

If any offence within the meaning of this Act of desertion or absence without leave or against discipline is committed, or if any act of misconduct is committed for which the offender's agreement imposes a fine and it is intended to enforce the fine-

(a)

an entry of the offence or act shall be made in the official log book and signed by the master, the mate and one of the crew; and

(b)

the offender, if still in the ship, shall before the next subsequent arrival of the ship at any port, or, if she is at the time in port, before her departure therefrom, be furnished with a copy of the entry and have the same read over distinctly and audibly to him and may thereupon make such reply thereto as he thinks fit; and

(c)

a statement of a copy of the entry having been so furnished and the entry having been so read over and the reply, if any, made by the offender shall likewise be entered and signed in manner aforesaid; and

(d)

in any subsequent legal proceedings the entries by this section required shall, if practicable, be produced or proved, and, in default of such production or proof, the court hearing the case may in its discretion, refuse to receive evidence of the offence or act of misconduct.

Payment of fines imposed under agreement to shipping master

202.

(1)

Every fine imposed on a seaman for any act of misconduct under his agreement shall be deducted and paid over as follows, namely :-

(a)

if the offender is discharged at any port or place in India and the offence and such entries in respect thereof as aforesaid are proved to the satisfaction of the shipping master before whom the offender is discharged, the master or owner shall deduct such fine from the wages of the offender and pay the same over to such shipping master; and

(b)

if the seaman is discharged at any port or place outside India and the offence and such entries as aforesaid are proved to the satisfaction of the Indian consular officer, by whose sanction he is so discharged, the fine shall thereupon be deducted as aforesaid, and an entry of such deduction shall then be made in the official log book, if any, and signed by such officer and on the return of the ship to India, the master or owner shall pay over such fine to the shipping master before whom the crew is discharged.

(2)

An act of misconduct for which any such fine has been inflicted and paid shall not be otherwise punishable under the provisions of this Act.

(3)

The proceeds of all fines received by a shipping master under this section shall be utilized for the welfare of seaman in such manner as the Central Government may direct.

On change of master, documents to be handed over to successor

208.

(1)

If during the progress of a voyage the master of any Indian ship is removed or superseded or for any other reason quits the ship and is succeeded in the command by some other person, he shall deliver to his successor the various documents relating to the navigation of the ship and the crew thereof which are in his custody.

(2)

Such successor shall immediately on assuming the command of the ship enter in the official log book a list of the documents so delivered to him.

Transmission of documents on transfer of seaman from one ship to another

209.

Where a seaman is transferred under his agreement from one ship to another, the master of the ship from which the seaman is transferred shall, as soon as practicable, transmit to master of the other ship all documents in his possession relating to seaman.

Index to Entries in Official Log Book

Entries

Reference

to pages in which the Various entries appear

Conviction

of any member of crew and Punishment [Section 214(1)(a) of M.S. Act, 1958]

Offences

committed by Member of Crew for which it is intended to prosecute or to enforce a Forfeiture or to exact a Fine, together with such statement concerning the reading over of such entry, and concerning the reply (if any) made to the charge as is required by law [Section 214(1)(c) of M.S. Act, 1958]

Offence

for which punishment has been inflicted on board, and the punishment inflicted. [Section 214(1)(c) of M.S. Act, 1958]

Illness,

hurt or injury that has happened to any Member of Crew, the nature thereof and the medical treatment adopted (if any). [Section 214(1)(e) of M.S. Act, 1958]

Notice

of disrating. [Section 126 of M.S. Act, 1958]

Death

that has happened on board, and cause thereof and other particulars as prescribed. [Section 214(1)(f) of M.S. Act, 1958]

Birth

that has happened on board, the sex of the infant, the names of the parents and other particulars as prescribed. [Section 214(1)(h) of M.S. Act, 1958]

Marriages

that have taken place on board and the names and ages of the parties. [Section 214(1)(h) of M.S. Act, 1958]

The

times of opening and closing hinged doors, etc., which are required to be kept closed during navigation.

Name

of Seaman or Apprentice who has ceased to be a Member of the crew, otherwise than by death, With the place, time, manner and cause thereof; whether, if bed and bedding were issued to him,

these articles were returned before leaving the ship. [Section 214(1)(i) & 172(1) of M.S. Act, 1958]

Wages

due to any Seaman or Apprentice who has died during the voyage and the gross amount of all deductions to be made therefrom.

[Sections 152(2)(b) & 214(1) of M.S. Act, 1958]

Statement

of the amount of money and description of the effects left by any Seaman or Apprentice who died during the voyage. [Section

152(2)(a) & 214(1)(k) of M.S. Act, 1958]

Collision

with any other ship, and the circumstances under which the same occurred. [Section 349 of M.S. Act, 1958]

Order

of Marine Board. [Section 376(2) of M.S. Act, 1958]

Inspection

of Provisions and Water. [Section 168(4) of M.S. Act, 1958]

Change

of Masters - List of documents handed to new Master. [Section 208(2) of M.S. Act, 1958]

Report

of Character of Crew. [Section 214(1)(d) of M.S. Act, 1958]

Road

line, free board and draught of water. [Section 319(1)(d) of M.S. Act, 1958]

Occasions

on which boat drill, fire drill, etc., is practiced, or life saving, fire appliances are examined.

Signals

received of distress or messages that a vessel, aircraft or person is in distress at sea; reasons, if any, for not going to the assistance of persons in distress after having received a distress signal. [Section 355(5) & (6) of M.S. Act, 1958]

Caution. - Section 436(2) S. No. 72 of the Merchant Shipping Act, 1958, provides that if any person willfully destroys or mutilates or renders illegible any entry in any official log book or willfully makes or procures to be made or assists in making a false or fraudulent entry in or omission from an official log book shall be liable to imprisonment for a term which may extend to one year.

Lists of Crews and Report of Character

Reference No. in

Agreement

Name and Surname

of each member of the Crew

Capacity in which

engaged

Report

of Character

If

there is any entry in this Official Log relating in any way to the crew, the page or pages where the entry is to be found should be noted in this column opposite the persons, name.

Ship

Ship
For
ability
For
General Conduct
For
ability
For
General Conduct

Load-Line Depth of Loading and Freeboard

The Merchant Shipping Act, 1958, Section 312 to 319 & 436(2).

Provides amongst other things, as follows :-

Marking of deck line and load lines

312.

(1)

No Indian ship, being a ship of which the keel was laid after the 30th day of June, 1932, and not being exempt from the provisions of this Part relating to load lines, shall proceed to sea unless-

(a)

the ship has been surveyed in accordance of assignment;

(b)

the ship complies with the conditions of assignment;

(c)

the ship is marked on each side with a mark (hereafter in this Act referred to as a deck line) indicating the position of the uppermost complete deck as defined by the load line rules, and with marks (hereafter in this Act referred to as load lines) indicating the several maximum depths to which the ship can be safely loaded in various circumstances prescribed by the load line rules;

(d)

the deck line and load lines are of the description required by the load line-rules, the deck line is in the position required by those rules, and the load lines are of the number required by such of those rules as are applicable to the ship; and

(e)

the load lines are in the position required by such of the load line rules as are applicable to the ship.

(2)

No Indian ship, being a ship of which the keel was laid before the 1st day of July, 1932, and not being exempt from the provisions of this Part relating to load lines, shall proceed to sea unless--

(a)

the ship has been surveyed and marked in accordance with clauses (a), (c) and (d) of sub-section (1);

(b)

the ship complies with the conditions of assignment in principle and also in detail so far as, in the opinion of the Central Government, is reasonable and practicable having regard to the efficiency of the protection of openings, the guard rails, the freeing ports and the means of access to the crew's quarters provided by the arrangements, fittings and appliances existing on the ship at the time when she is surveyed under this section; and

(c)

the load lines are either in the position required by clause (e) of sub-section (1) or in the position required by the tables used by the Board of Trade of the United Kingdom on the 31st day of December, 1906, for fixing the position of load lines, subject to such modifications of those tables and of the applications thereof as were in force; immediately before the 5th day of July, 1930.

(3)

Any ship attempting to proceed to sea without being surveyed and marked as required by this section may be detained until she has been surveyed and marked, and any ship which does not comply with the conditions of assignment to the extent required in her case by this section shall be deemed to be unsafe for the purpose of section 336.

Submersion of load lines

313.

(1)

An Indian ship (not being exempt from the provisions of this Part relating to load lines) shall not be so loaded as to submerge in salt water, when the ship has no list, the appropriate load line on earth side of the ship, that is to say, the load line indicating or purporting to indicate the maximum depth to which say, the ship is for the time being entitled under the load line rules to be loaded.

(2)

Without prejudice to any other proceedings under this Act, any ship which is loaded in contravention of this section may be detained until she ceases to be so loaded.

Maintenance of local line marks

314.

(1)

No owner or master of an Indian ship which has been marked in accordance with the foregoing provisions of this part, shall without reasonable cause, fail to keep the ship so marked.

(2)

No person shall conceal, remove, alter deface or obliterate or suffer any person under his control to conceal, remove, after, deface or obliterate any mark placed on any such ship in accordance with the foregoing provisions of this Part except with the authority of a person entitled under the load line rules to authorize the alteration of the mark or except for the purpose of escaping capture by an enemy or by a foreign ship of war in the exercise of some belligerent right.

Publication of load line certificate and particulars relating to depth of loading

319.

(1)

When a load line certificate has been issued in pursuance of the foregoing provisions of this Part in respect of an Indian ship other than a home-trade ship of less than two hundred tons gross----

(a)

the owner of the ship shall forthwith on the receipt of the certificate cause it to be posted up in some conspicuous on board the ship and to be kept so posted up and legible to long as the certificate remains in force and the ship is in use; and

(b)

the master of the ship, before making any other entry in any official log book, shall enter or cause to be entered therein the particulars as to the position of the deck line and load lines specified in the certificate.

(2)

Before any such ship leaves any dock, wharf, harbour or other place for the purpose of proceeding to sea, the master thereof shall-

(a)

enter or cause to be entered in the official log book such particulars relating to the depth to which the ship is for the time being loaded as the Central Government may by rules made in this behalf prescribe; and

(b)

cause a notice, in such form and containing such of the said particulars as may be required by the said rules, to be posted up in some conspicuous place on board the ship and to be kept so posted up and legible until the ship arrives at some other dock, wharf, harbour or place :

Provided that the Central Government may by the said rules exempt home-trade ships or any class of home-trade ships from the requirements of clause (b) of this sub-section.

Penalties

436.

(1)

Any person who contravenes any provision of this Act or fails to comply with any provision thereof which it was his duty to comply with, shall be guilty of an offence; and if in respect of any such offence no penalty is specially provided in sub-section (2), he shall be punishable with fine which may extend to two hundred rupees.

(2)

The offences mentioned in the second column of the following table shall be punishable to the extent mentioned in the

fourth column of the same with reference to such offences respectively.

Serial

No.

Offences

Section

of this Act to which offence has reference

Penalties

*

* * * * *

The

master or owner shall be liable to fine which may extend to one thousand rupees.

99.

If any ship proceeds or attempts to proceed to sea in contravention of 312 section 312.

100.

If any ship is loaded in contravention of 313 section 313.

The

master or owner shall be liable to fine which may extend to ten thousand rupees and to such additional fine not exceeding one thousand rupees for every inch or fraction of an inch by which the appropriate load lines on each side of the ship are submerged or would have been submerged if the ship had been in salt waters and had no list, as the court thinks fit to impose, having regard to the extent to which the earning capacity of the ships is or would have been increased by reason of the submersion :

Provide

that it shall be a good defence for the master or owner to prove that a contravention was due solely to deviation or delay caused solely by stress of weather or other circumstance which neither the master nor the owner nor the charterer, if any, could have prevented or forestalled.

101.

(a) If the owner or master of an Indian ship contravenes sub-section (1) of section 314; or

Fine

which may extend to one thousand rupees.

(b)

if any person contravenes sub-section 314(2) of section 314.

102.

If a master or owner fails to deliver 317(5) the certificate as required under sub-section (5) of section 317.

Fine

which may extend to one hundred rupees.

103.

If a master proceeds or attempts to 318(1) proceed to sea in contravention of sub-section (1) of section 318.

Fine

which may extend to one thousand rupees.

104.

(a) If the owner of an Indian ship 319(1)(a) fails to comply

with clause (a) of sub-section (i), 319;or

(b)

if a master fails to comply with 319(1)(b) clause (b) of sub-section (1), or clause (a) or clause (b) of sub-section (2) of section 319.

319(2)

*

* * * * *

LOAD LINE, DEPTH OF LOADING, ETC.

Positions of the Deck Line and Load Lines

Free board from

deck line

Load Lines

Tropical.....feet.....inches

(T)

?..... inches above S.

.....decimetres

Summer.....feet.....inches

(S)

?..... Upper edge of line

through centre of disc.

?.....decimetres

Winter.....feet.....inches

(W)

?..... inches below S.

?.....decimetres

Winter North

Atlantic.....feet.....inches

(if assigned)

(WNA)

?..... inches below S.

?.....decimetres

Allowance for fresh water for all free boards inches. The upper edge of the deck line from which these free boards are measured is inches above the top of the deck at

(Above particulars to be taken from Load Line Certificate)

Maximum draught of water in summer

.....feet.....

inches

?.?.....decimeters

The maximum draught of water in summer is the draught of water which would be shown on the scale of feet/decimeters on the stem and stern post of the ship if she were so loaded that the upper edge of the summer load line were on the surface of the water and the ship were upright on an even keel.

Notes

1. The above particulars, and particulars of depths of loading as detailed on the following pages are to be recorded before the ship leaves any dock, wharf, harbour or other place for the purpose of proceeding to sea.
2. The actual free board amidships on each side of the ship is to be measured from the upper edge of the deck line to the surface of the water, when the ship is loaded and ready to leave. The actual "mean" free board is the mean of the actual free boards, port and starboard, measured as indicated above.
3. Form L.L. 14A. (India) or Form L.L. 14-B-India (Timber Ship) is to be posted up in some conspicuous place on board the ship before she leaves any dock, wharf, harbour or other place for the purpose of proceeding to sea, and the Notice

is to be kept so posted up and legible until the ship arrives at some other, dock wharf, harbour or place. The date and time of posting the Notice is to be entered in column 15.

4. No entries are required in columns 8-14 when the actual mean free board (Column 7) is not less than the appropriate salt water free board.

5. If, in determining density of water, use is made of a hydrometer on which the reading at the top of the scale is 1000 or 00, meaning "full-fresh water", the hydrometer means a density of 1015. if the hydrometer used has the scale reversed, i.e. if the reading 00 is at the bottom of the scale and means "full salt water" the density must be obtained by subtracting the hydrometer reading from 1025, e.g., if the reading is at 15, the density to be entered will be 1010.

6. The Winter North Atlantic Load Line, if assigned, applies to voyages across the North Atlantic, north of latitude 36 ON. during the winter months as defined in the Load Line Rules, 1934, and shown on the chart which forms part of these Rules. The periods during which the other seasonal load lines apply in different parts of the world are as indicated in the said Rules and chart.

7. Penalty. - Failure to enter the required particulars of load line, depth loading, etc. in the Official Log Book at the proper time renders the Master or Owner liable to a fine which may amount to two hundred rupees.

DATES OF DEPARTURE

FROM AND ARRIVAL

AT EACH DOCK,

WHARF, EVERY OCCASION OF THE SHIP

Date and Hour of

Departure

Dock, Wharf,

Harbour or Other Place

Actual Draught of

Water

Actual Free Board

Amidships

Density of Water

Allowance

Forward Aft.

Port

Starboard Mean

For Density of

Water

For Ashes and

Rubbish

1

2

3

4

5

6

7

8

9

10

ft. ins. dm

ft. ins. dm.

ft. ins. dm.

ft. ins. dm.

ft. ins. dm.

Inserted Weight ins.

Harbour or Other Place With the Draught of Water and Free Board Proceeding to Sea

DEPARTURES

SIGNATURES

ARRIVALS

For Fuel etc. to

be consumed on stretch of inland water.

Total Allowance

Mean Draught in

salt water as calculated after marking the appropriate allowances

Mean Free Board

Amidships in salt water as calculated after making the

appropriate allowances

Date and time of

Posting the Notice LL14-A

Master

Mate

Date and Hour of

Arrival

Dock, Wharf,

Harbour or other place.

11

12

13

14

15

16

17

18

19

Distance ins.

ft. ins. dm

ft. ins. dm

ft. ins. dm

Record of Drills (Boat Drills, Fire Drills, Etc.) and Musters and Examination of Life Saving Appliances

Date of Drill or

Muster and of Examination of the Life Saving and/or Fire

Appliances

Nature of Drill of

Muster

Nature of the

Examination of the Life Saving Appliances and/or Fire Appliances

and the condition in which they were found

Date of Entry

Signature of

Master and Mate

*An entry should be made of the type of drill or muster held i.e. whether boats were swung out and manned, etc. whether the passengers or crew were mustered, whether the crew were practiced in fire drill etc.

Record of Inspections of Crew's Accommodation at Sea

(Section 176 of the Merchant Shipping Act, 1958)

Date of Inspection

Results of Inspection

Date of Entry

Signature of person making inspection

OFFICIAL LOG

of the towards from

Date and hour of the Occurrence

Place of the occurrence or situation by Latitude

of Longitude at sea

Date of Entry

Entries required by the Merchant Shipping Act,
1958

Amount of Fine or forfeiture inflicted

N.B. - Every entry in this Log Book required by the Merchant Shipping Act, 1958, must be signed by the Master and by the Mate or some other member of the Crew, and every entry of illness, injury or death must be signed by the Medical Officer on board (if any); and every entry of wages due to, or of the property of any Seaman or Apprentice who has died must be signed by the Master and by the Mate by some other member of the Crew.

Note. - Reading over Entries of Offences. The Master's special attention is called to Section 196 of the Merchant Shipping Act, 1958, a copy of which has been reproduced in this Book.

Record of Inspection of Provisions and Water

(Section 168 of the Merchant Shipping Act, 1958)

Date

Result

of the Inspection of Provisions and Water

Signature

of Inspectiong Officer

Record of Inspections at Sea of Provisions and Water

(Section 177 of the Merchant Shipping Act, 1958)

Date of

Inspection

Result

of Inspection

Data of

Entry

Signature

of person making Inspections

Marriages Births and Deaths of Members of the Crew, and other Persons on Board Which Have Occurred During the Voyage

Marriages. - Section 214(1)(h) of the Merchant Shipping Act, 1958, requires the Master of the ship to enter in his official Log the particulars of every marriage that has taken place on board.

Births and Deaths. - The duties of the Master with regard to the registry of births and deaths on board ship are defined in the following extracts from Section 214(1) of the Merchant Shipping Act, 1958 :-

"214. (1) The master of a ship for which an official log is required shall enter or cause to be entered in the official log book the following matters, namely :-

(f)

Every case of death happening on board and the cause thereof, together with such particulars as may be prescribed;

(g)

Every birth happening board, with the sex of the infant, the names of the parents and such other particulars as may be prescribed."

If the Master of any ship fails to comply with any requirements of this section, he shall be liable for each offence to a fine which may extend to two hundred rupees.

In addition to the brief statement of the "Cause of Death" in the following tabular statement the Master should be careful to add in the body of the official log book full particulars of all the circumstances attending the death, more particularly in

the case of murder, disappearance or suicide.

If a fatal accident occurs on board by reason of any damage in the ship, or to any part of it, or to the cargo, the details, as stated above should be entered in a similar manner.

If a death occurs in a port, the name of the port should be given, and it should be stated whether the death occurred on board or in hospital.

If a seaman dies on shore from an accident which happened, or from a disease which developed while he was a member of the crew, it is desirable that an entry of the death should be made in the same way.

Marriages

Date when Married

Names and Surname
of both parties

Age

Whether single,
divorced or widowed

Profession or
Occupation

Father's Name and
Surname

Profession or
Occupation of Father

1

2

3

4

5

6

7

Signed

Person performing marriage

Master

or Officer-in-Command

BIRTHS

? (See instructions)

Date of Birth

Time and Place of
Birth

Whether still born
or born alive

Name (if any) of
child

Sex

Name and Surname
of father

Occupation of
Father

Name and Surname
of Mother

Maiden name of
mother

DEATHS

? (See instructions)

Date of Death
Place of Death
Name and Surname
of Deceased
Father's/Sex
Husband's Name
Age
Occupation
Nationality
(stating Birth place and Religion)
Last place of Abode
Members
of Crew (including
Person
who were not on previous page)
Father
(Nationality place
and Religion)
Last place of
Abode
Mother
Nationality
(stating birth * place & Religion)
Last place of
Abode
Signature of
Master and Mate or other member of the Crew
Signature of
Father or Mother
Date of sending
Return to Director General of shipping or other Authority
Cause of Death
Manner in which
body was disposed of
Signature of
Master or Person-in-Charge
Signature of Mate
or Other Member of Crew
Signature of
Medical Officer (if any)
Date of sending
Return to Director General or Shipping of other authority
Signature of
Officer (other than inquiring officer who takes statements in
connection with the death
(including Master)
Members of the
Crew
Space for endorsement by Officer
who inquires into the circumstances attending a death
.....

(Signature)

.....

(Designation)

.....

(Port)

.....

(Date)

Time of Opening and Closing Watertight Doors, Etc.

Record of the time of opening and closing any of the watertight doors side-scuttles, and other contrivances mentioned in paragraph I of the explanatory notice at the end of this log book and the relative notes.

Date

Particulars

of Contrivance

Time

of

Signatures

of Master and Mate or Chief Engineer

Opening

Closing

Practices of Opening and Closing Watertight Doors, Etc.

Record of every occasion of practicing the opening and closing of watertight doors, side scuttles, scuppers and other contrivances mentioned in paragraph II of the explanatory notice at the end of this log book and the relative notes.

Date

of Practice

Name

of Contrivance Practised

Remarks

including full particulars of any defects found

Signatures

of Master and Mate or Chief Engineer

Inspection of Watertight Doors and Valves

Record of every occasion on which the watertight doors and valves specified in paragraph III of the explanatory notice at the end of this log book are inspected.

Date

of Practice

Name

of Contrivance Practised

Remarks

including full particulars of any defects found

Signatures

of Master and Mate or Chief Engineer

Related AI tags, queries and research notes

Translation